ANSWER KEY

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MAHATMA GANDHI UNIVERSITY, KOTTAYAM

MGU-UGP (HONOURS) REGULAR EXAMINATION MARCH 2025

SECOND SEMESTER

Multi-Disciplinary Courses (MDC) - MG2MDCPOL100 - INTRODUCTION TO INTELLECTUAL PROPERTY RIGHTS

(2024 ADMISSION ONWARDS)

PART A

1. b) Copyright

2. a) 23

3. c) Invention

4. c) 2013

5. b) Allow anyone to use, modify, and distribute the work under the same license

6. d) France

7. a) Designs Act, 2000

8. c) Safeguarding their innovations and creative works

9. d) WTO

10. c) Real Estate

PART B

11.Related rights protect performers, producers of sound recordings, and broadcasting organizations-they are crucial for safeguarding creative contributions that are not covered under traditional copyright-these rights ensure fair remuneration and control over the use of performances, recordings, and broadcasts.

12.Copyright holders of literary, dramatic, and musical works have exclusive rights to reproduce, publish, perform, adapt, and communicate their works to the public-these rights help maintain control over creative output and enable the creator to earn recognition and financial benefit.

13.Patents protect inventions that are novel and useful, while industrial designs protect the aesthetic or ornamental aspects of a product-Patents offer broader technical protection, whereas

design rights focus on visual appearance. Both stimulate innovation but serve different creative outcomes.

14.Intellectual property rights encourage innovation by granting legal protection to creators and inventors-this boosts investment, job creation, and competitive advantage-IPR also attracts foreign direct investment and boosts research and development, thus contributing significantly to economic development.

15.Indian courts have played a crucial role in interpreting and enforcing IPR laws. Landmark cases like *Novartis v. Union of India* and *Yahoo Inc. v. Akash Arora* helped define patentability and trademark infringement, shaping a balanced approach to innovation and public interest.

16.Open innovation enables knowledge sharing and speeds up product development, reducing R&D costs-however, it also risks intellectual property leakage, loss of competitive advantage, and coordination challenges-Industries like pharmaceuticals and software must balance openness with protective measures for sustainable innovation.

17.Copyleft licensing allows users to freely use, modify, and distribute software or content, provided derivative works carry the same license-promotes collaboration and transparency while preventing proprietary control over modified versions, commonly used in open-source communities like Linux or GNU.

18.The Trade Marks Act, 1999 aims to protect trademarks for goods and services, prevent misuse or duplication, and ensure fair trade practices-grants exclusive rights to brand owners and helps consumers identify product origin, supporting brand reputation and market integrity.

PART C

19.The World Trade Organization (WTO) emerged in 1995 as a successor to GATT to regulate international trade-provides a framework for negotiating trade agreements, resolving disputes, and ensuring fair competition-WTO plays a key role in promoting globalization, reducing trade barriers, and enforcing intellectual property standards globally.

20.Intellectual Property Rights (IPR) offer legal protection to innovations, making markets more secure and attractive for foreign investors-strong IPR regimes encourage technology transfer, joint ventures, and R&D-for entrepreneurs, IPR enables monetization of ideas, builds brand value, and fosters a competitive business environment, driving economic and innovation-led growth.

21.Indian IPR laws, including the Patents Act, Trademarks Act, and Copyright Act, have been amended to comply with TRIPS-they balance innovation incentives with public interest by ensuring patentability standards, compulsory licensing provisions, and data protection, thus aligning domestic regulations with global intellectual property norms.

22.The Patent Cooperation Treaty (PCT) simplifies the international patent application process by allowing inventors to seek protection in multiple countries through a single application-reduces administrative burden, provides more time for market evaluation, and promotes global innovation by streamlining the procedure for acquiring patent rights internationally